

Neha Jain vs Rachit Jain on 29 July, 2024

Author: Rajiv Shakdher

Bench: Rajiv Shakdher, Amit Bansal

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IN THE HIGH COURT OF DELHI AT NEW DELHI

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MAT.APP.(F.C.) 239/2024 & CM APPL. 42597

NEHA JAIN

Through: Mr. Anshul Sharm

Singh, Mr. Raj

Mr. Gopala Kri

versus

RACHIT JAIN

Through: Ms. Nandini Sahn

and Mr. Shasha

CORAM:

HON'BLE MR. JUSTICE RAJIV SHAKDHER

HON'BLE MR. JUSTICE AMIT BANSAL

ORDER

% 29.07.2024 [Physical Hearing/Hybrid Hearing (as per request)]

1. Allowed, subject to just exceptions. CM APPL. 42597/2024 & CM APPL. 42600/2024

2. These applications are filed on behalf of the appellant to seek condonation of delay in filing and re-filing the appeal. 2.1 According to the appellant, there is a delay of 44 days in filing and 19 days in re-filing the appeal.

3. Having regard to the delay involved, we are inclined to condone the same.

3.1. It is ordered accordingly.

4. The applications are closed.

MAT.APP.(F.C.) 239/2024 & CM 42598/2024

5. This appeal is directed against the judgment and order dated This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 05/08/2024 at 20:26:12 16.03.2024.

6. Via the impugned judgment and order, the appellant's application under Section 24 of Hindu Marriage Act, 1955 has been disposed of. 7 The learned Family Court has granted maintenance only to the child and not to the appellant.

7. 1 The maintenance granted to the child by the learned Family Court is Rs.25,000/- per month.

8. The matter requires further examination.

9. Issue notice.

9.1 Ms. Nandini Sahni accepts notice on behalf of the respondent.

10. Since counsel for the parties, on instructions, say that the parties are amenable to arriving at a settlement in the matter, we are inclined to refer the parties to the Delhi High Court Mediation and Conciliation Centre [in short, "Centre"].

11. The parties, along with their respective counsel, shall present themselves before the Centre on 09.08.2024 at 03:00 PM.

12. The Centre will endeavour to appoint a senior mediator who has experience in Family Law.

13. The mediator shall submit the report to the Court prior to the next date of hearing.

14. List the appeal before the Court on 22.11.2024.

RAJIV SHAKDHER, J AMIT BANSAL, J JULY 29, 2024/ds This is a digitally signed order.

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